

		<i>v. Superior Court</i> (1998) 63 Cal.App.4th 367, 376.) When individuals employ the public powers of state courts to accomplish private ends, “they do so in full knowledge of the possibly disadvantageous circumstance that the documents and records filed ... will be open to public inspection.” (<i>Ibid.</i>) Absent circumstances not present here, the court may seal the records at issue only if it expressly finds facts establishing that: 1. There exists an overriding interest that overcomes the right of public access to the record; 2. The overriding interest supports sealing the record; 3. A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; 4. The proposed sealing is narrowly tailored; and 5. No less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).) The party moving to have a record sealed bears the burden of proving such facts. (See <i>H.B. Fuller Company v. Doe</i> (2007) 151 Cal.App.4th 879, 894-895.) Petitioner has met such burden. The declaration in support of this motion sets forth facts sufficient to find overriding interests that will be prejudiced if this motion is denied. The proposed sealing is narrowly tailored and no less restrictive means exist to achieve the overriding interest. The motion is GRANTED. ROAs 3, 22, 24, 28, and 30 are to remain permanently sealed. When Petitioner is ready to file MC-356, Petitioner shall file both an unredacted form conditionally under seal and a redacted form for public record. The court will then permanently seal the unredacted version. This order is without prejudice to the right of any person to seek an order unsealing the sealed documents pursuant to CRC, Rule 2.551(h).
01437433	Compas - Trust	TENTATIVE RULING Case: Compas - Trust 01437433